Standard Operating Procedure (SOP)

Country Specific Requirements Germany

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Applicability

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Distribution Sheet for Quality Regulations

Division/Business Unit ☒ PH ☒ CH

GBS Location
☐ Global Business Services Barcelona
☐ Global Business Services Costa Rica/Brazil
☐ Global Business Services Manila
☒ Global Business Services Gdansk
☐ Global Business Services India
☐ Global Business Services Dalian
☐ Global Business Services Germany

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1 Scope and Framework

1.1 Scope

Bayer Country Quality Units are accountable for a GMP compliant Product Technical Complaint Management within their respective countries. Within this responsibility they are supported by the respective Global Business Service in process steps like complaint initiation, classification forwarding for investigation to the RQU, and final approval including complaint sample management and reimbursement process.

This SOP defines clear guidance to the Global Business Service regarding all country specific requirements.

1.2 Framework

This SOP is based on principles and requirements outlined in SSC-PTC-SOP-001 “Manage Product Technical Complaint and Suspected Counterfeit Incidents in GBS”.

2 Abbreviations

AE	Adverse Event
CMO	Contract Manufacturing Organization
CQH	Country Quality Head
CQU	Country Quality Unit
GBS	Global Business Service
OTC products	Over-the-counter products
PTC	Product Technical Complaint
PV	Pharmacovigilance
RQU	Responsible Quality Unit
MI	Medical Information
BV	Bayer Vital

3 Purpose & Set-Up

3.1 Purpose

Country Specific Requirements for Germany are described in this SOP, regarding e.g. Data Privacy, Sample Handling Process, Reimbursement Process, Contacts, escalation rules.

During the processing of all PTCs by Bayer owned Global Business Service all country specific requirements are considered and followed besides the general complaint handling described in the SSC-PTC-SOP-001 “Manage Product Technical Complaint and Suspected Counterfeit Incidents in GBS”.

3.2 General guidance

The employees of Global Business Services follow the SOP during complaint processing in the complaint database on behalf of the Country Quality Units.

3.3 Roles and responsibilities

GBS team	- Enters PTCs, Suspected Counterfeit Incidents and Usability Issues according to defined timelines in a timely manner, entering them into the global complaint database in English language - Organizes missing information and asks CQU for any support contacting the complainant if not possible/allowed by GBS (e.g. data privacy, non-hosted language) - Performs the initial intake of complaints after receipt - Informs the CQU about all PTCs where local authorities are involved, about all potential counterfeits and any other cases described in this SOP - Informs the respective PV about all PTCs with a potential associated AE or LODE or potentially reportable medical device complaints, including the unique complaint database number and all relevant follow-up information - Forwards the case to the respective RQU for further assessment - Initiates the process of sample shipment if requested by RQU or specified in any other guidance document - Reviews the case for plausibility and closes the complaint case in complaint database - Sends out standard response letters in case it is agreed with the CQU - Supports the process for reimbursement management - Organizes the complaint sample and sends it to the RQU if requested if applicable. - Forwards all cases that are not PTCs back to the CQU or to the appropriate function for further processing
Country Quality Head (CQH) / Country Quality Unit (CQU)	- Is responsible for regular KPI evaluation to get overview of complaint activities at the GBS - Supports the GBS in organizing missing complaint information - Organizes the complaint sample and sends it to the RQU if requested if applicable. - Sends out the Response Letters to the complainants as requested and agreed with the GBS - Contacts local CMO on request of GBS as RQU to get investigation reports from the respective CMO - Ensures that all changes within the country's laws and regulations are directly notified to the GBS and that the Country Specific SOP is updated

4 Specific requirements regarding PTC handling

4.1 Country Specific Requirements listed by different topics

Description	Assigned Roles & Document Reference

4.1.1 General Information

The German commercial organization operates under the name Bayer Vital GmbH. The main office is located in Leverkusen.

4.1.2 Contact list

Germany receives complaints to their general email address:

ptc.de@bayer.com

CQH Germany - Sven Erik Nekarda *svenerik.nekarda@bayer.com*

CQH deputy – Clara Trilsbach *clara.trilsbach@bayer.com*

General e-mail CQU: *bv-complaint@bayer.com*

Remark:
Current name and e-mail address of CQH and CQH deputy are found on the QINT SharePoint:

https://bayergroup.sharepoint.com/sites/oneqint/SitePages/Who%20are%20we.aspx#country-quality-list

4.1.3 Escalation

Rules GBS

The CQH / CQH deputy and CQU should be notified via notification in the complaint database about any complaint case referring to at least one of the following situations:

- Suspected Counterfeit Cases and FMD cases
- Any cases involving Health Authorities
- Cases with final risk category high or medium (escalation via immediate action)
- Any case involving a lawyer/lawsuit (if it is clearly stated in the communication)
- Any case involving media

The local PV (*bv-med-ams@bayer.com*) *and* graduated stage officer: Yvonne Nanciu (*Yvonne.nanciu@bayer.com*) will be also notified via e-mail or via complaint database about any complaint case referring to at least one of the following situations:

- Suspected Counterfeit Cases (without FMD cases)
- Confirmed Suspected Counterfeit Cases (without FMD cases)

The Global Anti-Counterfeit-Team (*acf@bayer.com*) will be notified in the complaint database about any complaint case referring to:

- Confirmed Suspected Counterfeit Cases (without FMD cases).

Description	Assigned Roles & Document Reference
Remark: The current names and e-mail addresses of the CQH and the CQH deputy are found on the QINT SharePoint: *https://bayergroup.sharepoint.com/sites/oneqint/SitePages/Who%20are%20we.aspx#country-quality-list*	
4.1.4 Pharmacovigilance cases If a complaint case is related to any type of Adverse Event, the Pharmacovigilance department has to be informed via the following e-mail address: *bv-med-ams@bayer.com* *and* graduated stage officer: *Yvonne.nanciu@bayer.com*, unless complaint was received from PV or MI with AE reference.	GBS
4.1.5 Product Samples PTC officer asks for pictures of the complaint sample (Annex 2) and attach all pictures in complaint database. RQU can then decide within 3 weeks from awareness date if they need a sample for further investigations. If such a request comes up, PTC Team use Standard letters for “Sample request” to ask for the physical sample (Annex 3). If a physical sample arrives at the CQU - GBS will be informed via e-mail. PTC officer informs CQU about the Complaint ID and if the sample has to be sent to the RQU or stored locally by filling Complaint Sample Tracking List on Teams SharePoint. If sample is requested by RQU - PTC officer sends a shipping label (generated in DHL System) to the complainant with request Annex 3 – scenario 1 and sample are delivered to RQU directly. **In case of IUS:** HCP placing a complaint with the reimbursement program (physicians support program) – Complainant fills in the complaint form (“Erfassungsbogen”) and send it with the pictures of the sample to *ptc.de@bayer.com*. If a sample is requested by RQU - PTC officer sends request to the complainant according to Annex 3. **Exceptions for this rule are:** • Complaints with Suspected Counterfeit Cases (without FMD cases) - PTC officer asks for sample immediately • Any cases involving Health Authorities - PTC officer asks for sample immediately • Complaints for IUS where no signs of usage are visible on the pictures (e.g. IUS fell on the floor when removing from the package) - PTC officer asks for sample immediately • Radiology cases: If sample is requested by RQU - PTC officer sends request internally to *randiqara_emea@bayer.com* – *Annex 7 – Scanario 6* • Breelib cases: samples of the medical device Breelib do not need to be requested. The whole sample shipment process happens at the PSP ‘VentaPlus’. • Betaferon/Betaconnect that are reported via the PSP ‘BetaPlus’, there won’t be a sample request letter sent. The PSP hands out pre-printed envelopes to have the samples shipped directly to the CQU • Xofigo samples are not allowed to be shipped. Only pictures are allowed.	GBS

Description	Assigned Roles & Document Reference

4.1.6 Statement letter GBS

Acknowledgement Letter when a complaint comes in:

After a complaint is handed in, an immediate acknowledgement (Annex 4) of receipt is sent out to the complainant. Usually, this notification covers the question whether a statement letter is required or not.

Exceptions for this rule are:

- No acknowledgment letter is sent by e-mail to the complaint in case of Betaferon/ Betaconnect complaints.
  Betaferon has its own acknowledgement/reply letter which is sent by mail form CQU (Annex 6).
  Betaconnect is managed by PSP (Patient Support Program)
- Radiology correspondence with the complainant is carried out by a technician (Radiology Team).

Response Letter after closing:

Standard response letters (Annex 5 - Scenario 1 and 2) are sent out without involvement of the CQU and are attached by complaint – only Acknowledgement/Replacement letter for IUS is not required to upload in the complaint database.

Exception:

Confirmed final risk categories high and medium

In case of PTC + AE: involvement of PV

Authority responses

Confirmed counterfeit

Requests with claim for damages (possible lawsuits) or lawyer involvement

Cases involving press/Media

Betaferon (Annex 6) - PTC officer prepares a draft letter, forwards it to CQU who sends it to the complainant. PTC officer uploads letter by complaint.

Postal reply: for rare cases when postal reply is needed, PTC officer prepares a draft email (an answer letter) to CQU who prints it out and sends it to the complainant.

In these cases after the assessment, PTC officer informs the CQU to prepare the response letter. Then then after receiving it from CQU - PTC officer uploads the letter in complaint database.

For Radiology cases - If written response is required - PTC officer informs *brenda.miller@bayer.com*; *ricustomercomplaints@bayer.com* who prepares response letter and technician provide it to complainant. Shipments for Radiology are managed via Maastricht.

Description	Assigned Roles & Document Reference
4.1.7 RQU Contact list A table with all available products in the country, needed for entry into the complaint database, is available on SharePoint: go/ptcops. For CH products registration status in the respective country as well as Manufacturing Site are available via SYNAPS: go/synaps. List with the respective RQU contact names are provided by the Divisional Quality Assurance function and available on the SharePoint: PH: *PH RQU responsible list_HJ.xlsx* CH: *IQMS_MASTER LIST COMPLAINT RESPONSIBILITIES.xlsx*	GBS
4.1.8 List of Local Opportunities Products Germany has no local opportunity products.	
4.1.9 Data Privacy Requirements PTC officer populates the personal data of a private person and fill in complaint database fields of complainant data when and to the degree needed to perform the sample handling: • *For private persons: only the last name, zip code, city and country are entered* • *For pharmacies, clinics, wholesaler etc.: full name of institution (pharmacy, clinic or wholesaler), the full postal address and the country are entered, but no contact person in order to avoid double entries*	
4.1.10 Gathering additional information (including obtaining translation) In case when the CQU receives a complaint firstly by phone, then Product Complaint Form (see Annex 1) is used to document received information. The CQU sends this form to the GBS via e-mail as soon as possible, because timeline starts when phone complaint is received by the CQU. The German language is a hosted language in GBS Gdansk. This means that contact with complainant (verbal and written) to gather missing information regarding the complaint is done by GBS employee responsible for the case. **Cryptic letters/Handwritten letters:** Only in case of the difficulty in reading the letter, PTC officer may return to the CQU for assistance.	GBS CQU
4.1.11 Reimbursement and Replacement The reimbursement process starts at the availability of pictures or sample.	GBS

Description	Assigned Roles & Document Reference

Exceptions for this rule are:

- If a product is complained after the expiry date, PTC officer enters the complaint into the complaint database, but no reimbursement is initiated
- There is no replacement for products that are provided for free to customers These products are identified with “MS” or “Muster” (i.e JAYDESS 1x1 MS (or MUSTER) IUS DE). PTC officer sends a letter to complainant as in (Annex 5 - Scenario 6)
- No replacement of products if AE only is reported or PTC/UI+AE for Women’s Health Products. PTC officer sends a letter to complainant as in (Annex 5 - Scenario 4)
- No replacement of products if the IUS picture or sample is not provided. PTC officer sends a letter to complainant as in (Annex 5 - Scenario 5)
- No replacement of products that do not originate from the German market (e.g., parallel import, products bought on vacation). PTC officer sends a letter to complainant as in (Annex 5 - Scenario 3)
- Betaferon It is a first necessity drug, so Replacement is delivered by the pharmacy to a private person immediately
- If a patient (private person) complains on a prescription drug product (“Rx-product”) they are asked to get their exchange in a pharmacy of their choice (Annex 2 - Scenario 2)

Notes:

- For IUS Usability Issues cases, PTC officer without needed knowledge of language may use translated registration sheet (Erfassungsbogen - Annex 9) – this is only applicable if just the check boxes are used but not the free text field.
- For Women’s Health products the reimbursement is only occurring for the smallest available product unit.

Contact information for reimbursement process:

If the conditions for granting a replacement or credit note are met, PTC officer carries out the replacement process in accordance with the applicable rules:

- **Replacement for non-prescribed drugs** can be sent to a private person directly. The “Adler Apotheke” (a local pharmacy) receives an e-mail (Annex 7 – scenario 1) that they shall send the replacement to customer. If a customer sent a sample on their own account, additional compensation in the form of a cosmetic product from the Bepanthol series is granted.
- **Replacement for IUS** is sent through “Bielefeld” pharmacy, PTC officer prepares a list of (Annex 8) on a weekly basis and sends it to *thomas.kleine@uniapo.com*; *antje.quest@uniapo.com* and in cc: *bv-complaint@bayer.com* (Annex 7 Scenario 2)
- **Replacement or credit note for prescribed drugs (RX-products)** can be sent to pharmacy/ clinic/wholesaler directly after PTC officer’s request (Annex 7 Scenario 3) to following addresses:
  - for pharmacy - *csc-backoffice@bayer.com*
  - for clinic - *csc-klinik@bayer.com*
  - for wholesaler - *csc-handel@bayer.com*
- **Replacement or credit note for Radiology** is sent through *info@radiologie.bayer.de*. after PTC officer’s request (Annex 7 Scenario 4).
- In case a **complaint was reported via a member of the field staff**, this colleague is in the copy when requesting the reimbursement from “CSC” Teams.

Description	Assigned Roles & Document Reference

Additional exceptions in Reimbursement and Replacement:

Betaferon

- As the number of complained syringes is often very small the reimbursement is a 1x14 syringes (Mat. 81596299) package or a variety of them. Only if the whole package arrives, the big package sizes are replaced.
- When performing the reimbursement, the PTC officer sends an email to *csc-backoffice@bayer.com* (Annex 7 Scenario 5) including the patient's last name so the pharmacy can inform the recipient of the arrival of package.
- Regarding the e-mail of the replacement letter (Annex 6 - Betaferon letter), the PTC officer prepares a draft letter, uploads it into complaint database forwards it to CQU who sends it to the complainant.

Betaconnect

- Replacement for Betaconnect is managed by PSP "BetaPlus"

Breelib

- For data entry of the complaint in complaint database, PTC officer receives Breelib form (automatically from Patient Support Program).
- The reimbursement process is done by PSP "VentaPlus"
- PTC officer provides Complaint ID to: *b.thomas@vitartis.de; m.stolzenburg@vitartis.de; mqa-goettingen@viluavitartis.de*.

Primovist, Gadovist, Magnevist 2 mmol, Ultravist und Gastrografin

- PTC officer request for replacement/credit notes by *info@radiologie.bayer.de (*including the PTC number - the initial message and - the number of returned complaint samples) The colleagues then take care of everything else*.*

Kovalty and Jivi

- If a patient claims only individual vials/syringes from a pack of 30, only the number of vials/syringes complained about will be reimbursed.

4.1.12 Mandatory Spot Checks for Translations — GBS

No translation service is used for Germany

Description	Assigned Roles & Document Reference

4.1.13 Exceptions and special cases

- In cases when the customer requests batch/product verification, PTC officer follows IQMS Complaints UG Batch/Product Information and sends response letter to the customer in (Annex 5 Scenario 7).
- For Radiology cases:
  - The complaint is received as a word file of a “Radiology Medical Device Product Report Form” that contains all the needed information. The complaint is related to CT or MRI medical devices.
  - In case of **AE** cases: PTC officer does not contact PV.

- In case of Eylea cases, we have 2 different scenarios:
  1. **When a complaint comes from practice/pharmacy/distributor/clinic or Medical Information**: in this case, all the below colleagues need to be informed about all communications occurred i.e., (Questions to the doctor, Email CSC back office for credit, reply letter),
  2. **When a complaint comes from practice/pharmacy/distributor/clinic or Medical Information** - all the colleagues below need to be informed about all communications occurred (i.e., questions to the doctor, E-mail csc- back office for credit, reply letter): *janhenrik.benholz@bayer.com*; *jarves.drechsler@bayer.com*; *bernd.linsenbuehler@bayer.com*; *cornelia.schulter@bayer.com*.

4.1.14 Others

Parallel import

- All complaints regarding reimports/parallel imports are entered into the complaint database for the country where it is reported. If the complaint is without a suspected counterfeit and only on the secondary packaging, the complaint can be closed locally.
- Parallel importer contact information is obtained from the internet/google.
- No replacement occurs.
- When parallel import is created for IUSs, PTC officer enters the case in complaint database, but no replacement occurs.

5 Internal References

- SSC-PTC-SOP-001 “Manage Product Technical Complaints and Suspected Counterfeit Incidents in GBS”

6 External References

- N/A

History of changes

Version	Significant changes with respect to previous version	Effective date
1	New document	2020-11-25
2	# chapter 4.1.3, 4.1.13, 4.1.14 updated # chapter 4.1.9 updated with detail data privacy rules for Germany # chapter 4.1.5 and 4.1.11 updated in accordance to changes for sample handling and reimbursement process provided by CQU # chapter 8 added and updated with new versions of templates used in correspondence with complainants	2021-06-07
3	# chapter 4.1.5, 4.1.11 updated in accordance to changes for sample handling and reimbursement process provided by CQU # chapter 7 added and updated with new versions of templates used in correspondence with complainants # chapter 4.1.11 updated with new product procedures and approach of handling # chapter 4.1.13 new user letter 49 is created # chapter 4.1.3, 4.1.13, 4.1.14 updated # chapter 4.1.9 updated with detail data privacy rules for Germany # Minor changes to annexes # 8, 10, 19. # Correction to technical mistakes in SOP; (i.e., highlighted text, deletion of duplicates)	2022-06-13
4	# chapter 4.1.5, 4.1.11 updated in accordance to changes for sample handling (3 weeks) and reimbursement process provided by CQU # chapter 7 added and updated with new versions of templates used in correspondence with complainants # Correction to technical mistakes in SOP; (i.e., highlighted text, deletion of duplicates,numbering) # chapter 4.1.11 Kovalty and Jivi reimbursement; replacement of email *drugsafety@vitartis.de* to mqa-goettingen@viluavitartis.de # adjusting of numbering # change of abbriaviation/nomenclature from SSC to GBS	2023-07-14
5	# Updated according to SSC-PTC-BP-002 v.6.0 Country Specific SOP template # Roles and responsibilities updated based on SSC-PTC-SOP-001 v.6.0 # Complaint database system name updated from “Dev@com” to “complaint database” due to change of the complaint database system # chapter 2 updated (new abbreviations added) # chapter 3 updated (CQH/CQU responsibilities) # chapter 4.1.1 and 4.1.2 updated (general information, contact list) # chapter 4.1.3updated and new rules added	See cover page

	# chapters: 4.1.4; 4.1.5; 4.1.6; 4.1.7 updated acc. to: SSC-PTC-BP-002, SSC-PTC-SOP-001, # chapter 4.1.8 changed – deleted description of “Leganto” chapters: 4.1.9; 4.1.10; 4.1.11; 4.1.12; 4.1.13; 4.1.14 - updated acc. to: SSC-PTC-BP-002, SSC-PTC-SOP-001 and new rules added # chapter 8 added and updated with new versions of templates.	

7 Annex 1

Product Complaint Form

Complaint created (date)……
Complaint received (date) ……

Product information:	
Product name	
Batch / lot number	
Dosage form *(cream, tablet, capsule, etc.)*	
Package type/size	
Number of packages	
Sample available?*	Yes/No
*Sample available = please keep for further potential shipment	

Complaint information:	
Complaint description (defect description, is it suspected counterfeit case, etc.)	
Adverse event reported?	Yes/No
Does the complainant expect a response from Bayer?**	
**By requesting a response, the Complainant agrees to his/hers contact data being processed by Bayer for the purpose of providing the answer to the submitted complaint *(the exact sounding to be aligned with legal)*	

Complainants' contact information attention: in the countries with special Data Privacy regulations to be replaced by the complainant code number (to be given by CQU)	
Name and surname	
E-mail address	
Telephone	
Home address	

Sender (if other than Complainant, e.g. a pharmacy)	
Senders' Name (Legal entity)	
Address	
E-Mail address	
Telephone number	

Any additional information	

8 Templates

Annex 2



Annex 2 - picture requests

Annex 3



Annex 3 - Sample request

Annex 4



Annex 4 -Acknowledgement

Annex 5



Annex 5 - Reply letters

Annex 6



Annex 6 - BV-Betaferon letter

Annex 7



Annex 7 - Internal requests used in PTC

Annex 8



Annex 8 IUS reimbursement list

Annex 9



Annex 9 - IUS Erfassungbogen Trans

Annex 10



Annex 10.pdf

Task: Content Approval Verdict: Approve changes & release Approval to be made Effective	katarzyna mazur kominek (katarzyna.mazur-kominek@bayer.com) Approver - Content 07-Oct-2025 11:07:20 GMT+0000
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